

25STCV10352 25STCV10352

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Case Number: 25STCV10352 Hearing Date: June 26, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 06/26/2026

CASE NUMBER: 25STCV10352

CASE NAME: ANDRES MUNOS ADONIS vs

POUNDEX ASSOCIATES CORP. ET AL.

MOVING PARTY: Defendants Poundex Associates

Corporation and Susan I Chen

OPPOSING PARTY: Plaintiff Andres Munis Adonis

PROCEEDING: Motion for summary judgment

RULING SUMMARY: Defendants Poundex Associates

Corporation and Susan I Chen's Motion for Summary Judgment is granted. Defendants are ordered to submit a proposed Judgment. The Court sets an Order to

Show Cause re Entry of Judgment for _____, 2026, at 8:30AM. Defendants to give notice.

Background

On April

7, 2025 Plaintiff Andres Munis Adonis ("Plaintiff") filed his Complaint against Defendants Poundex Associates Corporation ("Poundex"); Lyon Staffing Solutions, Inc. ("Lyon"); Lionel T. Chen ("Lionel")^[1];

Susan I Chen ("Susan"); and Ramon Rodriguez ("Rodriguez" and collectively

“Defendants”), alleging seven causes of action for: (1) Failure to Provide Meal Breaks against Defendants; (2) Failure to Provide Rest Breaks against Defendants; (3) Failure to Pay Wages against Defendants; (4) Failure to Pay Overtime against Defendants; (5) Violation of Bus. & Prof. Code §§ 17200-17208 against Defendants; (6) Retaliation in Violation of Lab. Code against Poundex and Lyon; (7) Wrongful Termination in Violation of Public Policy against Poundex and Lyon.

Plaintiff

alleges that he was employed by Defendants at 21590 Baker Parkway, in the City of Industry, California from about April 2021 to on or about April 7, 2024, as a forklift operator and, throughout his employment, Plaintiff did not receive proper meal breaks and rest breaks. Plaintiff further alleges that when he complained, Defendants retaliated against him and wrongfully terminated his employment on or about April 7, 2024. Plaintiff contends that Defendants acted as agents of all other defendants.

On May

14, 2025, Poundex and Susan filed their Answer. On July 29, 2025, Plaintiff dismissed without prejudice Lionel, Lyon, and Rodriguez. Hereafter, the term “Defendants” is used to address the remaining defendants, Poundex and Susan.

On

October 20, 2025, Yoosefian Law Firm, P.C., the firm representing Plaintiff, filed a Motion to Be Relieved as Counsel, which was granted on November 20, 2025.

On January

5, 2026, Defendants filed a Motion to Deem Requests for Admissions Admitted. The motion was unopposed, and it was granted on January 30, 2026.

On February

4, 2026, Defendants filed this Motion for Summary Judgment. No Opposition has been filed.

LEGAL

STANDARD – SUMMARY JUDGMENT/SUMMARY ADJUDICATION

The

function of a motion for summary judgment or adjudication is to allow a

determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67 [citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382].)

As to

each claim as framed by the complaint, the party moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc. § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once

the defendant has met that burden, the burden shifts to the opposing party to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

REQUEST

FOR JUDICIAL NOTICE

Request No. 1 [The

Order of the Court dated January 30, 2026 deeming the moving

defendants' first set
of Requests for Admissions admitted] – GRANTED.

Request No. 2 [The fact
that Plaintiff ANDRES MUNOS DONIS filed commenced this

litigation on April 7,
2025.] – GRANTED.

DISCUSSION

Defendants assert that Plaintiff's
factual admissions negate the elements of the entire Complaint, as Plaintiff
has admitted: (1) Defendants were not his employer; (2) Susan did not violate
or cause to be
violated, any Labor Code provision or regulation with regard to which liability
may attach to a corporate officer or agent under Labor Code section 558.1; (3)
Plaintiff was never denied meal breaks to which he was entitled under Labor
Code sections 226.7 and 512 and any applicable Industrial Welfare Commission
Wage Orders; (4) Plaintiff was never denied rest breaks to which he was
entitled under Labor Code section 226.7 and any applicable Industrial Welfare
Commission Wage Orders; (5) Plaintiff received all pay to which he was entitled
to under Labor Code and any applicable Industrial Welfare Commission Wage
Orders; (6) Plaintiff received all overtime pay to which he was entitled to
under Labor Code and any applicable Industrial Welfare Commission Wage Orders;
(7) Plaintiff did not make complaints concerning his working conditions or
Poundex's compensation practices in the four years preceding the filing of this
Complaint; (8) Plaintiff did not make any complaints concerning employee health
or safety in the four years preceding the filing of this Complaint; (9)
Plaintiff did not make any complaints about purported violations of state or
federal laws by Poundex in the four years preceding the filing of this
Complaint; (10) Plaintiff's dismissal was unrelated to any complaints that he
made concerning his working conditions or Poundex's compensation practices;
(11) Plaintiff's dismissal was unrelated to any complaints that he made
concerning employee safety or health; and (12) Plaintiff's dismissal was
unrelated to any complaints that he made to the effect that Poundex was
violating state or federal laws or regulations. (See Def.'s SSUMF Nos. 1-12
[citing as evidence Request for Judicial Notice Order Deeming Requests for
Admissions Admitted].)

“Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action . . . ” (Code Civ. Proc. § 2033.410(a); *Kelly v. New West Federal Savings* (1996) 49 Cal.App.4th 659, 672, [admitted facts preclude contrary evidence at trial].)

Defendants have met their initial burden of proof by establishing:

1.

Plaintiff's

First Cause of Action (Failure

to Provide Meal Breaks against Defendants) is negated due to Plaintiff's admission that he was never denied timely uninterrupted meal breaks (see Def.'s SSUMF No. 3; RJN at Admission No. 9 [Admit that at no time from April 7, 2021 through April 7, 2024 was Andres Munos Donis ever denied timely uninterrupted meal breaks as required under California Labor Code sections 226.7 and 512 and any applicable Industrial Welfare Commission Wage Orders]);

2.

Plaintiff's

Second Cause of Action (Failure to Provide Rest Breaks against Defendants) is negated due to Plaintiff's admission that he was never denied timely uninterrupted rest breaks (see Def.'s SSUMF No. 4; RJN at Admission No. 10 [Admit that at no time from April 7, 2021 through April 7, 2024 was Andres Munos Donis ever denied timely uninterrupted paid rest breaks as required under California Labor Code section 226.7 and any applicable Industrial Welfare Commission Wage Orders]);

3.

Plaintiff's

Third Cause of Action (Failure to Pay Wages against Defendants) is negated due to Plaintiff's admission that he received all pay he was entitled to from April 7, 2021 to April 7, 2024 (see Def.'s SSUMF No. 5; RJN at Admission No. 11 [Admit that for all pay periods worked by Andres Munos Donis from April 7, 2021 through April 7, 2024, Andres Munos Donis received all pay to which he was entitled under the California Labor Code and any applicable Industrial Welfare Commission Wage Orders]);

4.

Plaintiff's

Fourth Cause of Action (Failure to Pay Overtime against Defendants) is negated due to Plaintiff's admission that he received all overtime pay he was entitled to from April 7, 2021 to April 7, 2024 (see Def.'s SSUMF No. 6; RJN at Admission No. 13 [Admit that at all times from April 7, 2021 through April 7, 2024, Andres Munos Donis received all overtime premium pay to which he was entitled under the California Labor Code and any applicable Industrial Welfare Commission Wage Orders]);

5.

Plaintiff's

Fifth Cause of Action (Violation of Bus. & Prof. Code §§ 17200-17208 against Defendants) is negated due to the fact that the basis for the Fifth Cause of Action is the claims in the First through Fourth Causes of Action (see Complaint ¶¶ 50-54) which have been negated as described above;

6.

Plaintiff's

Sixth Cause of Action (Retaliation in Violation of Lab. Code against Poundex only) is negated as Plaintiff has admitted that he made no complaints as to the working conditions, violations of any laws or regulations, and/or employee safety and health to trigger retaliation (see SSUMF Nos. 7-9; RJN at Admission Nos. 16-22 [concerning admissions that no complaints were made, Plaintiff's resignation was unrelated to any complaints made, and Plaintiff voluntarily resigned at Poundex]);

7.

Plaintiff's

Seventh Cause of Action (Wrongful Termination in Violation of Public Policy against Poundex only) is negated as Plaintiff has admitted that he made no complaints as to the working conditions, violations of any laws or regulations, and/or employee safety and health to trigger retaliation (see *ibid.*).

The

burden shifts to Plaintiff to show that a triable issue of one or more material facts or a defense exists as to the seven causes of action within his Complaint.

Plaintiff

does not oppose this motion.

The

Court construes the lack of opposition as a concession on the merits. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728 at fn. 4 [where nonmoving party fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground].)

For

the reasons stated above, the Court finds that “papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c(c).)

Conclusion

Defendants

Poundex Associates Corporation and Susan I Chen's Motion for Summary Judgment is granted. Defendants are ordered to submit a proposed Judgment. The Court sets an Order to Show Cause re Entry of Judgment for _____, 2026, at 8:30AM. Defendants to give notice.

Date: 06/26/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Defendants Lionel T. Chen and Susan I Chen share the same surname. The Court addresses each individually by their respective first name for the purpose of clarity.